

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CURTNEY POWERS,

Plaintiff,

-against-

CITY OF NEW YORK AND SEVERAL
UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 25TH PRECINCT,

Defendants.
-----X

Index No.:
Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
434-A Marion Street
Brooklyn, New York 11233

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
September 17, 2014



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
CURTNEY POWERS
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CURTNEY POWERS,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK AND SEVERAL
UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 25TH PRECINCT,

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff CURTNEY POWERS by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, respectfully alleges as follows:

1. That Plaintiff CURTNEY POWERS is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

4. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

5. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE

OFFICERS ASSIGNED TO THE 25TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of their office as police officers for said county, city and state.

7. That on October 17, 2013, at approximately 10:00 P.M., Plaintiff CURTNEY POWERS was lawfully present at 112th Street and 7th Avenue, in the County, City, and State of New York.

8. That, at the aforementioned time and place, Plaintiff CURTNEY POWERS was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT.

9. That, at the aforementioned time and place, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, subjected Plaintiff CURTNEY POWERS to an unlawful strip search, and placed him under arrest for, upon information and belief, Criminal Possession of a Controlled Substance, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

10. That Plaintiff CURTNEY POWERS was transported to the 25th Precinct (120 East 119th Street, New York, New York, 10035), and thereafter transported to Manhattan Central Booking (100 Centre Street, New York, New York) where his arrest was processed.

11. That Defendants CITY OF NEW YORK and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, initiated criminal proceedings against Plaintiff CURTNEY POWERS despite Defendants' knowledge that they lacked probable cause to do so.

12. That Plaintiff CURTNEY POWERS was arraigned on October 17, 2013, and following said arraignment was transported to the Manhattan Detention Complex (125 White Street, New York, New York 10003) where he remained in the custody and control of Defendant CITY OF NEW YORK until he was released on his own recognizance on or about May 8, 2014.

13. That on May 9, 2014, by Order of the Honorable B. DiBiase, J.S.C., all charges against Plaintiff CURTNEY POWERS were dismissed (Docket Number 2013NY080070, Supreme Court-Criminal Term/New York County).

14. That on or about June 17, 2014, within 90 days of the happening of the complained of

incident but more than 30 days prior to the commencement of this action, Plaintiff CURTNEY POWERS duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

15. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT.

16. That a municipal hearing in this matter was held on August 6, 2014.

17. This action is commenced within one year and ninety days after the cause of action arose

18. As a result of the foregoing, Plaintiff CURTNEY POWERS sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983

19. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

20. That at the aforementioned time and place, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, placed Plaintiff CURTNEY POWERS under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

21. That Plaintiff CURTNEY POWERS had not committed any offense and Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

22. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, were aware that probable cause did not exist for the arrest and detention of Plaintiff CURTNEY POWERS and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff CURTNEY POWERS and such actions were committed in bad faith.

23. That, in all of the wrongful acts above alleged, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff CURTNEY POWERS and such actions were committed in bad faith.

24. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff CURTNEY POWERS was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

25. As a further result of the above-described acts, Plaintiff CURTNEY POWERS was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

26. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

27. That Plaintiff CURTNEY POWERS was falsely imprisoned from October 17, 2013 to May 8, 2014, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

28. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, intended to confine Plaintiff CURTNEY

POWERS, and Plaintiff CURTNEY POWERS was conscious of the confinement, and Plaintiff CURTNEY POWERS did not consent to the confinement.

29. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff CURTNEY POWERS and damaging Plaintiff CURTNEY POWERS in his reputation and depriving him of his liberty.

30. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff CURTNEY POWERS suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983**

31. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

32. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT misrepresented and falsified evidence before the District Attorney.

33. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT did not make a complete and full statement of facts to the District Attorney.

34. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT withheld exculpatory evidence from the District Attorney.

35. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff CURTNEY POWERS.

36. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff CURTNEY POWERS.

37. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT acted with malice in initiating criminal proceedings against Plaintiff CURTNEY POWERS.

38. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff CURTNEY POWERS.

39. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff CURTNEY POWERS.

40. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT acted with malice in continuing criminal proceedings Plaintiff CURTNEY POWERS.

41. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

42. That, notwithstanding the perjurious and fraudulent conduct of Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, the criminal proceedings were terminated in Plaintiff CURTNEY POWERS' favor.

AS AND FOR A FOURTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY

43. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

44. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

45. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to

satisfy an arrest quota.

46. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff CURTNEY POWERS.

47. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff CURTNEY POWERS as alleged herein.

48. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff CURTNEY POWERS as alleged herein.

49. That Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT while acting under the color of state law, was directly and actively involved in violating Plaintiff CURTNEY POWERS' constitutional rights.

50. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, deprived Plaintiff CURTNEY POWERS of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To receive equal protection under the law.

AS AND FOR A FIFTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

51. Plaintiff CURTNEY POWERS repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

52. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff CURTNEY POWERS' behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

53. As a result of the aforementioned conduct of Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, Plaintiff CURTNEY POWERS' constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

**AS AND FOR AN SIXTH CAUSE OF ACTION UNDER NEW YORK STATE LAW
FOR FALSE ARREST**

54. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

55. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, arrested Plaintiff CURTNEY POWERS in the absence of probable cause and without a warrant.

56. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, Plaintiff CURTNEY POWERS was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

57. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff CURTNEY POWERS' rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION UNDER NEW YORK STATE LAW FOR
FALSE IMPRISONMENT**

58. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

59. As a result of the foregoing, Plaintiff CURTNEY POWERS was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

60. Plaintiff CURTNEY POWERS was conscious of said confinement and did not consent to same.

61. The confinement of Plaintiff CURTNEY POWERS was without probable cause and was

not otherwise privileged.

62. As a result of the aforementioned conduct, Plaintiff CURTNEY POWERS has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

63 Plaintiff CURTNEY POWERS repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

64. On or about October 17, 2013, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT, commenced a criminal proceeding against Plaintiff CURTNEY POWERS, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

65. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff CURTNEY POWERS had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

66. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff CURTNEY POWERS.

67. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff CURTNEY POWERS.

68. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT were motivated by actual malice in initiating criminal proceedings against Plaintiff CURTNEY POWERS.

69. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE

25th PRECINCT misrepresented and falsified evidence before the District Attorney.

70. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT did not make a complete and full statement of facts to the District Attorney.

71. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT withheld exculpatory evidence from the District Attorney.

72. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

73. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 26th PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff CURTNEY POWERS.

74. Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT were motivated by actual malice in continuing criminal proceedings against Plaintiff CURTNEY POWERS.

75. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff CURTNEY POWERS' favor.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

76. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

77. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employee Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF

NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

78. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

79. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

80. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff CURTNEY POWERS. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

81. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25th PRECINCT, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff CURTNEY POWERS.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY**

82. Plaintiff CURTNEY POWERS repeats, reiterates, and realleges each and every

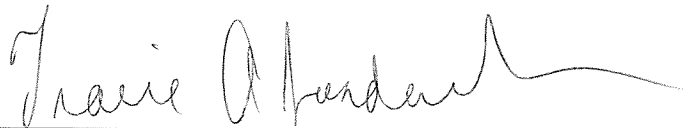
paragraph of this complaint and further alleges:

83. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

84. As a result of the foregoing, Plaintiff CURTNEY POWERS is entitled to compensatory damages in the sum of Two Million Dollars (\$2,000,000.00) and is further entitled to punitive damages in the sum of Four Million Dollars (\$4,000,000.00)

WHEREFORE Plaintiff CURTNEY POWERS demands judgment against Defendants CITY OF NEW YORK and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 25TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
September 17, 2014

A handwritten signature in black ink, appearing to read "Tracie A. Sundack", with a long horizontal flourish extending to the right.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

Attorneys for Plaintiff

CURTNEY POWERS

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

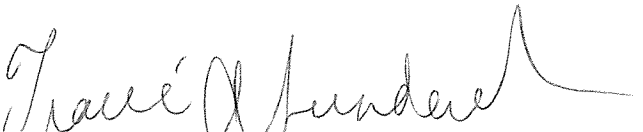
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
September 17, 2014



TRACIE A. SUNDACK